

26STCV15270 26STCV15270

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DEMURRER WITH
MOTION TO STRIKE

The Court tenders the following tentative decision in the matter Merrick Yzbick v. Studio City Universal Management LLC, et al., Los Angeles County Superior Court case number 26STCV15270, set for hearing on July 9, 2026. Studio City Universal Management, LLC, Rebecca Rosen, and Morris Maky (collectively, Defendants) demur to Merrick Yzbick's (Plaintiff) complaint and each cause of action contained therein individually. Defendants also move to strike Plaintiff's requests for punitive damages. The Court overrules Defendants' demurrer. The Court denies Defendants' motion to strike.

A. Legal
Standard

A demurrer is sustained where "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., 430.10, subd. (e).) "A demurrer tests the legal sufficiency of the factual allegations in a complaint." (Yalung v. State (2023) 98 Cal.App.5th 71, 80.) In reviewing a complaint's legal sufficiency, a court will treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law. (Esparza v. Kaweah Delta Dist. Hospital (2016) 3 Cal.App.5th 547, 552.) It is well settled that a "demurrer lies only for defects appearing on the face of the complaint[.]" (Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) "We not only treat the demurrer as admitting all material facts properly pleaded, but also give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (Guclimane

Co. v. Stewart Tit. Guaranty Co. (1998) 19 Cal.4th 26, 38.) For purposes of ruling on a demurrer, the complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (Wilner v. Sunset Life Ins. Co. (2000) 78 Cal.App.4th 952, 958.)

When ruling on a demurrer, a court may only consider the complaint's allegations or matters which may be judicially noticed. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider any other extrinsic evidence or judge the credibility of the allegations pleaded or the difficulty a plaintiff may have in proving his allegations. (Ion Equipment Corporation v. Nelson (1980) 110 Cal.App.3d 868, 881.) A demurrer is properly sustained only when the complaint, liberally construed, fails to state facts sufficient to constitute any cause of action. (Kramer v. Intuit Inc. (2004) 121 Cal.App.4th 574, 578.)

The Court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The Court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court. (Id., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

When a demurrer is sustained or a motion to strike is granted, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d at p. 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

Plaintiff asserts

the following causes of action: (1) wrongful eviction; (2) harassment in violation of Los Angeles Municipal Code section 45.33; (3) harassment in violation of California Civil Code section 1940.2; (4) disability discrimination in violation of the Fair Employment and Housing Act (FEHA); (5) failure

to provide reasonable accommodation in violation of the FEHA; (6) interference with housing rights in violation of the FEHA; (7) breach of the covenant of quiet enjoyment; (8) intentional infliction of emotional distress; and (9) violation of the Unfair Competition Law (UCL). Defendants demur to all Plaintiff's causes of action on the basis that Plaintiff has failed to plead sufficient facts. (Code Civ. Proc., § 430.10, subd. (e).) Specifically, Defendants argue that Plaintiff's claims are barred because his eviction was secured through the execution of a writ of possession obtained pursuant to a court judgment. Additionally, Defendant moves to strike Plaintiff's claim for punitive damages and attorney's fees. (Id., § 436, subd. (a).) The Court will address each argument in turn.

Plaintiff's

action is not barred because of the writ of possession.

Defendants demur

to Plaintiff's complaint on the grounds that because Plaintiff was evicted pursuant to a writ of possession, Defendants are immune from suit. After entry of a judgment for possession of property, the court clerk shall issue a writ of possession. (Code Civ. Proc., § 712.010.) And publications made in a judicial proceeding are privileged. (Civ. Code, § 47, subd. (b).) Thus, generally a party is not liable for effectuating an eviction through proper legal channels. (See *Action Apartment Association, Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232.) However, a landlord is still liable for forcible entry if they evict a tenant under color of a void judgment. (*Bedi v. McMullan* (1984) 160 Cal.App.3d 272, 275 (Bedi).) Critically, in *Bedi* the defendants were aware that the writ of possession was based on a judgment which had been set aside. (Id. at p. 274.) The Court of Appeal later determined that where a landlord evicts a tenant using a writ based on a judgment that is later rendered void, the same liability does not attach. (*Glass v. Najafi* (2000) 78 Cal.App.4th 45, 51.)

Here, Defendants'

argument invoking the litigation privilege does not defeat Plaintiff's claims as a matter of law. Even if Plaintiff were unable to hold Defendants liable for the forcible removal of Plaintiff through execution of a writ of possession, Plaintiff could still sue for wrongful eviction. This is because wrongful eviction liability is premised on the plaintiff's improper eviction, not the means through which that eviction was obtained. To that end, Plaintiff's complaint includes various allegations apart from the writ's execution, including that his

tenancy was wrongfully terminated. (Compl. ¶ 79.) Because Plaintiff was evicted pursuant to the writ before it was found to be void, Bedi liability is unavailable under the complaint as pled. (Id. ¶¶ 44, 52, 54, 59.) But Plaintiff has alleged more than just removal pursuant to a writ. Thus, Defendants' argument under the litigation privilege does not bar Plaintiff's claims as a matter of law. And Defendants do not advance further arguments as to how any cause of action is individually deficient. Accordingly, Defendants' demurrer is overruled.

Defendants' motion to strike is denied.

Defendants move to strike Plaintiff's prayer for punitive damages and all paragraphs referencing punitive damages in the complaint. A plaintiff may recover punitive damages where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) "Punitive damages are merely incident to a cause of action, and can never constitute the basis thereof." (Today's IV v. Los Angeles County Metropolitan Transportation Authority (2022) 83 Cal.App.5th 1137, 1193.) Here, Plaintiff alleges that Defendants acted with malice, oppression, and fraud in pursuing his eviction. (Compl. ¶ 80.) Defendants once again argue that punitive damages are available because their actions were legally authorized. While liability may not attach based on the execution of the writ of possession itself, as discussed ante, Plaintiff has alleged other conduct. This includes pursuing Plaintiff's wrongful eviction despite knowledge of his "psychiatric crisis, hospitalization, diminished capacity, accommodation-related communications." (Ibid.) Accordingly, Defendant's motion to strike is denied as well.

Conclusion:

Defendants' demurrer is overruled. Their motion to strike is denied. 30 days to answer.